

Form No. INC-13



Form language

☒ English

☐ Hindi

e-MOA (e-Memorandum of Association)

[Pursuant to sections 4 and 8 of the Companies Act, 2013 and rules made thereunder read with Schedule I]

Refer instruction kit for filing the form

All fields marked in * are mandatory

1 The name of the company is

ENIRA CARING FOUNDATION

2 The registered office of the company will be situated in the State of

Uttar Pradesh

3 (a) The objects to be pursued by the company on its incorporation are:

Social work activities without accommodation for the elderly and disabled

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

1. To give donation to Dispensaries, Hospitals, Nursing Homes, Orphanages, and such other public medical institutions giving medical aid to needy people.
2. To provide free medications in all possible manner to the weaker section of the society in all possible manner.
3. To create health awareness program and to promote health Care Centre for the underprivileged public.
4. Empowerment of rural women and those who are facing domestic abuse.
5. Improving the life of youth living in depression and going through suicidal tendencies.

the doing of all such other lawful things as considered necessary for the furtherance of the above objects:

Provided that the company shall not support with its funds, or endeavor to impose on, or procure to be observed by its members or others, any regulation or restriction which, as an object of the company, would make it a trade union.

4 *The objects of the company extend to the

WHOLE OF INDIA

5 (i) The profits, if any, or other income and property of the company, when-so-ever derived, shall be applied, solely for the promotion of its objects as set forth in this memorandum.

(ii) No portion of the profits, other income or property aforesaid shall be paid or transferred, directly or indirectly, by way of dividend, bonus or otherwise by way of profit, to persons who, at any time are, or have been, members of the company or to any one or more of them or to any persons claiming through any one or more of them.

(iii) No remuneration or other benefit in money or money's worth shall be given by the company to any of its members, whether officers or members of the company or not, except payment of out-of-pocket expenses, reasonable and proper interest on money lent, or reasonable and proper rent on premises let to the company.

(iv) Nothing in this clause shall prevent the payment by the company in good faith of prudent remuneration to any of its officers or servants (not being members) or to any other person (not being member), in return for any services actually rendered to the company.

(v) Nothing in these clauses (iii) and (iv) shall prevent the payment by the company in good faith of prudence remuneration to any of its members in return for any services (not being services of a kind which are required to be rendered by a member), actually rendered to the company

6 No alteration shall be made to this memorandum of association or to the articles of association of the company which are for the time being in force, unless the alteration has been previously submitted to and approved by the Registrar.

7 The liability of the members is limited.

8. **Table applicable to Section 8/ Part I Section 8 company**

A - MEMORANDUM OF ASSOCIATION OF
A COMPANY LIMITED BY SHARES

Table A / B / C

(A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES/ B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING SHARE CAPITAL/ C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING SHARE CAPITAL)

Each member, undertakes to contribute to the assets of the company in the event of its being wound up while he is a member or within one year afterwards, for the payment of the debts or liabilities of the company contracted before he ceases to be a member and of the costs, charges and expenses of winding up, and for adjustment of the rights of the contributories among themselves such amount as may be required not exceeding a sum of Rs *

The share capital of the company is rupees, divided into

10000	Equity Share	Shares of	10	Rupees each	
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9 True accounts shall be kept of all sums of money received and expended by the company and the matters in respect of which such receipts and expenditure take place, and of the property, credits and liabilities of the company; and, subject to any reasonable restrictions as to the time and manner of inspecting the same that may be imposed in accordance with the regulations of the company for the time being in force, the accounts shall be open to the inspection of the members. Once at least in every year, the accounts of the company shall be examined, and the correctness of the balance-sheet and the income and expenditure account ascertained by one or more properly qualified auditor or auditors

10 If upon a winding up or dissolution of the company, there remains, after the satisfaction of all the debts and liabilities, any property whatsoever, the same shall not be distributed amongst the members of the company but shall be given or transferred to such other company having objects similar to the objects of this company, subject to such conditions as the Tribunal may impose, or may be sold and proceeds thereof credited to the Rehabilitation and Insolvency Fund formed under Section 269 of the Act.

11 The Company can be amalgamated only with another company registered under section 8 of the Act and having similar objects.

☐ 12 We, the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association:

Subscriber Details

S. No.	*Name, Address, Description and Occupation	DIN / PAN / Passport number	No. of equity shares taken	DSC	Dated
1	NITISH ARORA 118/133 GUMTI No-5 KAUSHALPURI BAMBHA ROAD KANPUR KANPUR Uttar Pradesh 208012 NA India	0*1*1*3*	5000 Equity,0 Preference	NITISH ARORA Digitally signed by NITISH ARORA Date: 2024.05.14 18:42:13 +05'30'	14/05/2024
2	ANITA KUMARI ARORA 118/133 GUMTI NO-5 KAUSHALPURI,R.K NAGAR KANPUR Uttar Pradesh 208012 NA India	0*2*1*8*	5000 Equity,0 Preference	ANITA KUMARI ARORA Digitally signed by ANITA KUMARI ARORA Date: 2024.05.14 18:42:25 +05'30'	14/05/2024
Total shares taken			10000 Equity,0 Preference		

Signed before me

Membership type of the witness	*Name of the witness	*Address, Description and Occupation	DIN / PAN / Passport number / Membership number	*DSC	Dated
ACA	Bhavna Seth	112/243 Swaroop Nagar Kanpur-208002 (Chartered Accountant in Practice)	4*8*8*	BHAVNA SETH Digitally signed by BHAVNA SETH Date: 2024.05.14 19:03:14 +05'30'	14/05/2024